



Journey Beyond – Kakadu Crocodile Hotel

IM-15013

Phase 1 Determination

Acquisition may be put into effect

5 May 2026

1. Determination and statement of reasons

Notified acquisition	Experience Australia Group Pty Ltd (EAG)’s proposed acquisition, via its wholly owned subsidiary JB Kakadu Hotel Pty Ltd (JB Kakadu), of Crocodile Hotel Pty Ltd, which owns the business and business assets known as the Kakadu Crocodile Hotel (Crocodile Hotel) in Jabiru, NT, as well as a 100% leasehold interest in the land on which the Crocodile Hotel is situated from Gundjeihmi Aboriginal Corporation Jabiru Town (the Acquisition).
Determination	The Australian Competition and Consumer Commission has determined under section 51ABZE(1) of the <i>Competition and Consumer Act 2010</i> (Cth) that the Acquisition may be put into effect.
Parties to the Acquisition	The acquirer, EAG, primarily supplies tourism services and multi-destination packaged tours in Australia under the brand name “Journey Beyond”. Via its wholly owned subsidiary Outback Spirit Tours Pty Ltd (Outback Spirit), EAG also supplies touring packages to remote destinations across Western Australia, the Northern Territory, Queensland and South Australia. The target, Crocodile Hotel, is a 110-room hotel located in the township of Jabiru in Kakadu National Park. In addition to accommodation, its facilities include a restaurant, bar and an on-site art gallery featuring local artwork.
Relationship between the parties	EAG and the Crocodile Hotel both operate in the tourism services supply chain in Kakadu. EAG currently uses accommodation provided by the Crocodile Hotel on certain tours.
Reasons for determination	When making a determination in Phase 1, the Australian Competition and Consumer Commission (ACCC) undertakes a competition assessment and considers whether it is appropriate for an acquisition to be approved or subject to further assessment in Phase 2 in accordance with section 51ABZJ of the <i>Competition and Consumer Act 2010</i> (Cth) (the Act). In doing so, the ACCC must have regard to the object of the Act and all relevant matters, including the interests of consumers. For more information about the ACCC’s approach to considering notified acquisitions, see the ACCC’s merger assessment guidelines and interim merger process guidelines. In conducting its competition assessment, the ACCC has considered the information and documents that were submitted with the notification form, information from third parties and publicly available information. The ACCC has determined that the Acquisition may be put into effect as it considers that the Acquisition is unlikely to have the effect of substantially lessening competition in any market. In reaching its decision, and based on the material before it, the ACCC makes the following findings. • There is no horizontal overlap between Journey Beyond and Crocodile Hotel. • While some market participants suggested that the Acquisition could enable the Parties to foreclose rival tour providers’ access

	to accommodation as an input to tour packages, the ACCC considers that the merged entity would be unlikely to have the incentive to do so due to the presence of alternative suppliers of accommodation in the area.
Applications for review	A notifying party, or other person who has been allowed to do so by the Australian Competition Tribunal, may apply for review if they are dissatisfied with the determination. Pursuant to section 100C of the Act, applications for review of the determination are to be made to the Australian Competition Tribunal before the end of 14 calendar days after this statement of reasons was included on the ACCC's Acquisitions Register. To confirm whether there has been any application for review, please contact the Australian Competition Tribunal.

**Determination made by Commissioner Williams pursuant to a delegation under section 25(1)
of the Act**

Determination made by the Commission